

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 12 - 05
Establishing That Age Not be a Criteria in
Qualifying as a Foster Parent or an Adoptive Parent**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the criteria for a person to quality as a foster parent or an adoptive parent should look to that person's parenting skills and capabilities, and

WHEREAS, the age of a foster parent or adoptive parent brought under the jurisdiction of the Chickasaw Nation and its designated courts should not, in and of itself, be used as a qualifying criterium for such person, and

WHEREAS, in light of the appearance of bias against older persons who have qualified under DHS and ICWA rules and designated as a foster parent or parents, but have been shown bias by officials that administer DHS and ICWA rules regarding such persons capability as an adoptive parent has been based on the age of such persons.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature adopts the following law, to wit:

Section 1 - Discrimination based on age is unlawful

In the administration of the Indian Child Welfare Act within the jurisdiction of the Chickasaw Nation and its designated courts, it shall be unlawful to use a person's age as one of the criteria for such person or persons to be a foster parent or an adoptive parent, unless such person's age is an obvious and apparent factor regarding such person's physical and emotional fitness for foster or adoptive parenting.

Executed in regular session of the Chickasaw Tribal Legislature,
meeting at Ada, Oklahoma, on November 18, 1994, by a vote of 12
ayes, 0 nays, and 0 abstentions.

Ken Parker
Chairperson
Chickasaw Tribal Legislature

Robert Walton
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date: NOV 18 1994

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Explanation: This resolution states that the Chickasaw Tribal Legislature adopts the following law, to wit:

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Requested by: Chairperson Ron Parker

Presented by: Mrs. Mevelyn Kirkpatrick, Chairman
Legislative Committee